

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #15	CCRB Case #: 201609287	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 11/01/2016 6:40 AM	Location of Incident: 45th Precinct stationhouse	18 Mo. SOL 5/1/2018	Precinct: 45
Date/Time CV Reported Tue, 11/01/2016 6:46 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/07/2016 11:34 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Hart	26047	941142	HWY 01

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Hart	Force: Police Officer Matthew Hart used physical force against § 87(2)(b)	A . Complainant Unavailable

Case Summary

On November 1, 2016, Sgt. David Coote of the 47th Precinct, called the IAB Command Center, on behalf of § 87(2)(b) generating IAB Log No. 16-38569. The complaint was forwarded to the CCRB on November 7, 2016, with § 87(2)(b)'s resident address but no contact number or email address.

On November 10, 2016 a CLEAR database search was conducted which confirmed § 87(2)(b)'s resident address and revealed a possible contact number for him. On the same day, § 87(2)(b) was called, but a busy signal was prompted and the undersigned was unable to leave a voicemail. Also on the same day, § 87(2)(b) was sent a please call letter which was not returned by the United States Postal Service.

On November 15, and November 17, 2016, § 87(2)(b) was called but again a busy signal was prompted and the undersigned was unable to leave voicemails. On November 17, 2016, § 87(2)(b) was sent a second please call letter which was not returned by the United States Postal Service.

On November 15, 2016, a CTS database search revealed that this is the first complaint involving § 87(2)(b).

On November 22, 2016, the undersigned called § 87(2)(b) and spoke to a male individual who identified himself as § 87(2)(b)'s father. § 87(2)(b)'s father stated that this is not § 87(2)(b)'s contact number and provided the undersigned with § 87(2)(b)'s accurate contact number.

Between November 22, and December 7, 2016, the undersigned called § 87(2)(b) at the number provided by his father five times. There was no answer but the undersigned was forwarded to a voicemail in which § 87(2)(b) identifies himself, by name, each time. The undersigned left several voice messages informing § 87(2)(b) of the reason for the calls, and informed § 87(2)(b) that if the CCRB does not hear from him soon, the agency might have to close the case without conducting a full and thorough investigation.

On November 30, 2016, § 87(2)(b) was mailed a third please call letter which was not returned by the United States Postal Service.

On December 7, 2016, New York City and New York State Department of Correction Inmate Look-up searches revealed that § 87(2)(b) was not incarcerated.

As of the date this report is being written, § 87(2)(b) has not made any attempts to contact the CCRB.

§ 87(2)(g)
§ 87(2)(b), it is recommended that this case be closed as **complainant unavailable**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date